

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jackie Manginelli	Team: Squad #10	CCRB Case #: 201910619	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/10/2019 7:11 AM, Tuesday, 12/10/2019 3:35 PM	Location of Incident: In front of § 87(2)(b) in Brooklyn, 75th Precinct stationhouse	Precinct: 75	18 Mo. SOL 6/10/2021	EO SOL 1/25/2022	
Date/Time CV Reported Wed, 12/11/2019 12:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/11/2019 10:38 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Artemisa Caceres	19898	954586	075 PCT
2. An officer			075 PCT
3. POF Keynaya Gorman	23242	962443	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Artemisa Caceres	Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Artemisa Caceres seized § 87(2)(b) s property.	
B.POF Keynaya Gorman	Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Keynaya Gorman seized § 87(2)(b) s property.	
C.POF Artemisa Caceres	Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Artemisa Caceres searched § 87(2)(b) s vehicle.	
D. An officer	Abuse: At the 75th Precinct stationhouse in Brooklyn, an officer interfered with § 87(2)(b) s use of a recording device.	
E. An officer	Abuse: At the 75th Precinct stationhouse in Brooklyn, an officer threatened to arrest § 87(2)(b)	

Case Summary

On December 11, 2019, § 87(2)(b) filed this complaint with the CCRB over the phone.

On December 10, 2019, earlier that morning, § 87(2)(b) parked his Ford E450 bus directly next to a fire hydrant in the vicinity of § 87(2)(b) in Brooklyn. § 87(2)(b) removed the license plates from the bus, stored the plates inside of the bus, and covered the VIN number so that he would not receive a summons. At approximately 7:11 a.m., PO Artemisa Caceres and PO Keynaya Gorman noticed the vehicle parked next to a fire hydrant and could not identify the vehicle owner. PO Caceres noticed plates inside the vehicle but could not read what was on them. The officers called a towing company to tow the vehicle (**Allegations A and B – Abuse of Authority: Property Seizure:** § 87(2)(g)). When the towing company arrived, they opened the driver's door of the vehicle, PO Caceres went into the vehicle, and took out the plates inside of the vehicle to identify the vehicle owner (**Allegation C – Abuse of Authority: Vehicle search:** § 87(2)(g)).

At approximately 3:35 p.m., § 87(2)(b) went to the 75th precinct stationhouse to speak with PO Caceres about his bus. At the time, the 75th precinct stationhouse was under construction and all civilians had to enter through the back door. § 87(2)(b) encountered PO Caceres at the back door of the stationhouse where PO Caceres was holding the plates that § 87(2)(b) stored inside of the bus. § 87(2)(b) began recording his interaction with PO Caceres. Another officer approached him and said that he could not record there (**Allegation D – Abuse of Authority: Interference with recording device:** § 87(2)(g)). The officer told § 87(2)(b) that if he saw him videotaping there then he would arrest him (**Allegation E – Abuse of Authority: Threat of arrest:** § 87(2)(g)). § 87(2)(b) left. There were no summonses or arrests pertaining to this incident.

Body-worn camera footage was requested from PO Caceres and all officers involved in this incident, however, there were negative results for the request. § 87(2)(g)

Stationhouse footage was requested, however, there was no relevant footage recovered.

Findings and Recommendations

Allegation A – Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Police Officer Artemisa Caceres seized § 87(2)(b)'s property.

Allegation B – Abuse of Authority: In front of § 87(2)(b) in Brooklyn Police Officer Keynaya Gorman seized § 87(2)(b)'s property.

Allegation C – Abuse of Authority: In front of § 87(2)(b) in Brooklyn, Police Officer Artemisa Caceres searched § 87(2)(b)'s vehicle.

§ 87(2)(b) provided an initial brief phone statement on December 16, 2019 (**Board Review 11**).

§ 87(2)(b) was interviewed at the CCRB on February 19, 2020 (**Board Review 01**). PO Caceres was interviewed remotely on MS Teams on October 15, 2020 (**Board Review 02**). § 87(2)(g)

§ 87(2)(b) stated that he noticed that his bus was missing from where it had been parked earlier that day. § 87(2)(b) was sleeping at § 87(2)(b) that evening and had parked his bus on the corner of Schroeders Avenue and Elton Street in front of a fire hydrant at approximately

3:00 or 4:00 a.m. There was no parking in the neighborhood, and he had valuable items in the bus, so he wanted to park it close to where he was staying in case someone broke into the bus. § 87(2)(b) removed the plates from the bus and covered the VIN number on the windshield with a piece of paper after he parked it, so that he would not receive a summons. He left the plates to the right of the driver's seat on the floor of the bus. He also had New Jersey laminated expired temporary plates that he kept with the plates to the bus. All the windows were 5% tinted. § 87(2)(b) went to the 75th precinct stationhouse to report that his van was stolen. The officers he initially spoke to directed him to speak with PO Caceres about his bus being towed. § 87(2)(b) waited multiple hours in the stationhouse to speak with her and decided to leave. He left the stationhouse out the back door and encountered PO Caceres in the stationhouse parking lot. He noticed that PO Caceres was holding his plates that were stored in his vehicle, which made him believe that PO Caceres had searched his vehicle upon seizing it.

PO Caceres stated that she and PO Gorman, noticed a white Ford F4 30 vehicle that looked like an, "Access a ride van," parked next to a fire hydrant. PO Caceres thought it was a danger for this vehicle to be parked next to a hydrant. The officers noticed that there were no plates affixed to the vehicle. Also, the VIN number on the dashboard was covered with a piece of paper. PO Caceres saw plates inside of the vehicle near the driver's side door, however she was not able to read the plate number from outside of the vehicle. This location was a chronic 311 location where 311 has received approximately twenty calls and/or emails a day concerning vehicle complaints about vehicles being parked incorrectly or displaying the wrong information. That day, they did not receive a 311 complaint about this vehicle in front of the fire hydrant. The officers needed to find out who the vehicle belonged to, so PO Caceres called Northside Towing. The towing company arrived and used a tool to unlock the vehicle. They did not have to damage the vehicle in order to open it and there was no damage done to the vehicle. The officers only went into the vehicle to figure out the VIN number of the vehicle and to access the license plates in the vehicle. PO Caceres took out the vehicle plates and temporary plates that were discovered next to the plates. All the plates were vouchered. The plates came back to a woman named, § 87(2)(b) but PO Caceres was unable to reach § 87(2)(b) because there was no number on file for her. The plates did not belong to § 87(2)(b). She did not know who the temporary plates belonged to and did not think that they came back to anyone upon a search. PO Caceres did not notice anything else in the vehicle. Whatever was in the car was brought to the towing company. Because she could not issue a summons to anyone for the vehicle, the officers decided to tow the vehicle using their rotation towing program.

PO Caceres made fly page entries in her memo book that say, "Parked on Hydrant. No plates. Blocked Vin. Re: 311 Complaints. CHRONIC. RoTow § 87(2)(b) Ford F430." (**Board Review 03**).

PO Caceres also took a photograph of § 87(2)(b)'s vehicle. The vehicle is a white Ford bus and is parked on the left-hand side of a fire hydrant on the corner of Schroeders Avenue and Elton Street in Brooklyn. The vehicle does not have a front plate and the front windshield appears to be tinted (**Board Review 04**).

It was undisputed that § 87(2)(b) parked his bus directly next to a fire hydrant and was not present in the bus when it was towed. It was also undisputed that PO Caceres towed § 87(2)(b)'s vehicle using the Rotation Towing program. It was undisputed that PO Caceres went into § 87(2)(b)'s vehicle to retrieve and voucher both the temporary plates and the standard-issue plates inside of the vehicle.

According to Patrol Guide Section 218-21, Rotation Towing is used to process non-evidence stolen

or apparently abandoned vehicles recovered within New York City (**Board Review 05**).

According to Section 1224 of the New York Vehicle and Traffic Law, an abandoned vehicle is defined as a vehicle that is left unattended with no number plates affixed thereto, for more than six hours on any highway or other public place; for more than twenty-four hours on any highway or other public place, except a portion of a highway or public place on which parking is legally permitted; for more than forty-eight hours, after the parking of such vehicle shall have become illegal, if left on a portion of a highway or public place on which parking is legally permitted; and for more than ninety-six hours on property of another if left without permission of the owner (**Board Review 06**).

According to Section 1202 (b)(1) of the New York Vehicle and Traffic Law, no person shall stop, stand or park a vehicle within fifteen feet of a fire hydrant except when such vehicle is attended by a licensed operator or chauffeur who is seated in the front seat and who can immediately move such vehicle in case of emergency, unless a different distance is indicated by official signs, markings or parking meters (**Board Review 06**).

People v. Sparks, 13 A.D. 3d 813 found that an officer may conduct a limited search of an abandoned vehicle to determine true ownership of the vehicle (**Board Review 10**).

§ 87(2)(g)

Allegation D – Abuse of Authority: At the 75th Precinct stationhouse in Brooklyn, an officer interfered with § 87(2)(b)'s recording device.

Allegation E – Abuse of Authority: At the 75th Precinct stationhouse in Brooklyn, an officer threatened to arrest § 87(2)(b).

In his sworn statement, § 87(2)(b) stated that while he was speaking to PO Caceres outside of the 75th precinct stationhouse, he began recording the interaction. § 87(2)(b) saw “Cadet White” and a female PAA at the stationhouse standing nearby. Another officer approached him and told him that he needed to stop recording or else he would, “Lock him up.” § 87(2)(b) decided to leave the stationhouse because he did not want to get arrested. The officer went up to the PAA and said that he would arrest § 87(2)(b) if he saw him videotaping there again.

PO Caceres stated that she returned to the stationhouse and § 87(2)(b) the owner of the Ford F430, arrived at the stationhouse and asked to speak with the officer who towed his car. The PAA on duty found PO Caceres. She did not remember who the PAA was, but she was a woman. § 87(2)(b) was angry, yelling, and cursing at PO Caceres. He told her that she was not supposed to have towed the vehicle, but rather have given the vehicle a summons. PO Caceres asked § 87(2)(b) where he parked his car and he told her that it was next to the hydrant, but that she was only supposed to give him a summons. She told him that if he had the proper credentials on the vehicle then this would not have happened. He told her that it was not his vehicle and she asked him who § 87(2)(b) was. § 87(2)(b) told her that § 87(2)(b) was his girlfriend. She told him that she would have to get her credentials and go get the vehicle from the location. § 87(2)(b) either lingered in the stationhouse or returned later that day at approximately 3:35 p.m., when PO Caceres

was ending her tour. PO Caceres exited the stationhouse out the back door and § 87(2)(b) began following PO Caceres towards her personal vehicle. At the time of the incident, the stationhouse was under construction and everyone had to access the stationhouse at the back door. He continued to yell at her while he was following her. Two unknown male officers in uniform from the stationhouse escorted her to her vehicle at the officer parking lot a little bit up the block from the stationhouse. She did not mention a PAA or a cadet present for this interaction. The stationhouse parking lot and the parking lot up the street are NYPD property and are clearly labeled as such. PO Caceres did not know if § 87(2)(b) was recording but remembered that he had his phone. She did not remember if he was holding up his phone. § 87(2)(b) did not follow her into the officer parking lot. She did not recall an officer telling § 87(2)(b) that he would, “Lock him up,” if he did not stop videotaping the officers there. Recording in the stationhouse is prohibited. She assumed that it was also prohibited to record in the parking lot area.

The investigation was unable to obtain relevant stationhouse footage for this incident because the 75th precinct stationhouse was under construction at the time and all civilians had to enter the stationhouse through the back door in the parking lot. § 87(2)(g)

§ 87(2)(b) PO Caceres only remembered interacting with a PAA the first time that § 87(2)(b) went to the stationhouse. PO Caceres did not mention a cadet being present and it was not clear whether the cadet would have heard these allegations. § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint where § 87(2)(b) has been party (**Board Review 07**).
- PO Caceres has been a member of service for seven years and this is the first CCRB complaint for which she has been a subject.
- PO Gorman has been a member of service for four years and this is the first CCRB complaint for which she has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case.
- A request for any Notice of Claim from the Office of the Comptroller regarding this incident was returned with negative results (**Board Review 08**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
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[REDACTED]

Squad No.: 10

Investigator: Jackie Manginelli Inv. Jackie Manginelli 02/24/2020
Signature Print Title & Name Date

Squad Leader: Eric Rigie IM Eric Rigie 2/24/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date